

M/s Shree Jagdish Cement Pvt. Ltd. v. Pashchimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 31 May 2016 · Writ-C No. 75824 of 2005 · **Writ dismissed; no ground to quash additional security or clause 4.20.**

HEADNOTE

A consumer's writ to quash PVVNL's additional-security demand of Rs. 42.23 lakh, to strike down clause 4.20 of the U.P. Electricity Supply Code, 2005 as inconsistent with section 47 of the Electricity Act, 2003, and to obtain a pre-payment meter with refund of existing security plus interest, was dismissed after the Division Bench found no ground for any of those reliefs. Any interim order was vacated.

FACTUAL SUMMARY

M/s Shree Jagdish Cement Pvt. Ltd. challenged Paschimanchal Vidyut Vitran Nigam Ltd.'s 8 July 2005 demand for additional security of Rs. 42,23,301 after already depositing Rs. 41,65,000. It also attacked an 11 February 2005 Ministry of Power clarificatory letter, sought a declaration that clause 4.20 of the U.P. Electricity Supply Code, 2005 was ultra vires the Electricity Act, 2003, and claimed a pre-payment meter under section 47(5) with refund of security plus 12% interest under section 47(4). None appeared on the revised call.

HOLDING-UNITS

INTERPLAY · UP-2005::4.20

additional-security-and-prepayment-meter

HOLDING

After perusing the petition, the Division Bench found no ground entitling the consumer to quash the 8 July 2005 additional-security demand or the Ministry of Power clarificatory letter, to declare clause 4.20 of the U.P. Electricity Supply Code, 2005 ultra vires the Electricity Act, 2003, or to mandamus a pre-payment meter under section 47(5) with refund of existing security plus 12% interest under section 47(4). The writ was dismissed and any interim order vacated. ¶ 3-5

PRINCIPLE TAGS

prepayment-meter-exemption-conditional-on-availability A consumer's writ to quash PVVNL's additional-security demand of Rs. 42.23 lakh, to strike down clause 4.20 of the U.P.. ¶ 3-5